NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement ("Agreement") is entered into as of January 15, 2025 ("Effective Date") between:

***ABC GmbH**, a company organized under the laws of the Federal Republic of Germany, with its registered office at ABC-strasse 42, 80339 Munich, Germany ("ABC"), and*

***Mueller Binder Technologies GmbH**, a company organized under the laws of the Federal Republic of Germany, with its registered office at Alexanderplatz 10, 10178 Berlin, Germany ("Mueller Binder),*

each a "Party" and collectively the "Parties."

1. Purpose.

The Parties wish to exchange confidential information for the purpose of evaluating a potential technology partnership in the field of industrial automation (the "Purpose").

2. Confidential Information.

"Confidential Information" means any information disclosed by one Party (the "Disclosing Party") to the other (the "Receiving Party") that is marked as "Confidential" at the time of disclosure, or that by its nature or the circumstances of its disclosure would reasonably be understood to be confidential by a person exercising reasonable judgment. Information disclosed orally shall be confirmed as confidential in writing within thirty (30) days of disclosure.

3. Exceptions.

Confidential Information does not include information that the Receiving Party can demonstrate by contemporaneous written records: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was already in the Receiving Party's possession prior to disclosure; (c) is received from a third party without restriction on disclosure; or (d) is independently developed by the Receiving Party without use of the Confidential Information.

4. Obligations.

The Receiving Party shall protect Confidential Information using at least the same degree of care it uses for its own confidential information, but no less than reasonable care. The Receiving Party shall use Confidential Information solely for the Purpose.

5. Permitted Recipients.

The Receiving Party may disclose Confidential Information to its employees, affiliates, agents, advisors, and contractors on a need-to-know basis, provided they are bound by confidentiality obligations no less restrictive than those in this Agreement.

6. Compelled Disclosure.

If the Receiving Party is required by law or regulation to disclose Confidential Information, it shall promptly notify the Disclosing Party (to the extent legally permitted) and cooperate to limit the scope of disclosure.

7. No Warranty.

All Confidential Information is provided "AS IS." The Disclosing Party makes no warranty as to its accuracy, completeness, or fitness for any purpose. Neither Party shall be liable for any damages arising from the other Party's use of or reliance on the Confidential Information.

8. No Rights Granted.

Nothing in this Agreement grants either Party any license, right, or interest in the other Party's intellectual property, patents, copyrights, trade secrets, or know-how. Disclosure does not constitute a transfer of ownership.

9. Return or Destruction.

Upon written request, the Receiving Party shall return or destroy all Confidential Information and provide written certification of such destruction within thirty (30) days, except for copies required to be retained under applicable law or regulation. Any retained copies remain subject to the obligations of this Agreement.

10. Term and Confidentiality Period.

This Agreement shall remain in effect for a period of three (3) years from the Effective Date, unless terminated earlier by either Party upon thirty (30) days' written notice. The confidentiality obligations shall survive for a period of four (4) years from the date of each individual disclosure.

11. No Penalty.

No contractual penalty shall apply under this Agreement. Remedies for breach shall be limited to actual damages proven by the aggrieved Party.

12. Governing Law.

This Agreement shall be governed by and construed in accordance with the laws of the Federal Republic of Germany, without regard to its conflict of laws principles.

13. Dispute Resolution.

Any dispute arising out of or in connection with this Agreement shall be finally settled by arbitration under the ICC Rules, with the seat of arbitration in Zurich, Switzerland, conducted in English. The arbitral tribunal shall consist of one (1) arbitrator. Nothing in this clause prevents either Party from seeking injunctive relief from a court of competent jurisdiction.

14. General.

This Agreement constitutes the entire agreement between the Parties regarding the subject matter hereof. Amendments must be in writing and signed by both Parties. This Agreement may be executed in counterparts.

***IN WITNESS WHEREOF**, the Parties have caused this Agreement to be executed by their duly authorized representatives.*

ABC GmbH	**Mueller Binder Technologies GmbH**
Name: _____	Name: _____
Title: _____	Title: _____
Signature: _____	Signature: _____
Date: _____	Date: _____